

24CMCV01684 24CMCV01684

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-17

Motion: (1) MOTION TO COMPEL PSYCHOLOGICAL EVALUATION OF PLAINTIFF; (2) MOTION TO QUASH PLAINTIFFS' DEPOSITION SUBPOENA FOR APPEARANCE AND PRODUCTION; AND (3) MOTION TO QUASH OR MODIFY DEFENDANT'S DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS DATE: July 17, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV01684 Hearing Date: July 17, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

A., an individual; T.,
an individual,

Plaintiffs,

vs.

COMPTON UNIFIED SCHOOL DISTRICT, a public
entity; RUSSELL OTIS; and DOES 1 to 100,

Defendant.

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CASE

NO: 24CMCV01684

[TENTATIVE] ORDER RE: (1) MOTION TO COMPEL PSYCHOLOGICAL EVALUATION
OF PLAINTIFF; (2) MOTION TO QUASH PLAINTIFFS' DEPOSITION SUBPOENA FOR
APPEARANCE AND PRODUCTION; AND (3) MOTION TO QUASH OR MODIFY DEFENDANT'S
DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS

DATE: July 17, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Parties: Defendant Compton Unified
School District (Motion to Compel Psychological Examination)

Los Angeles Unified School District (Motion to Quash
Deposition Subpoena for Appearance and Production)

Plaintiff A (Motion to Quash or Modify Subpoena for
Production of Business Records)

Responding Parties: Plaintiffs A. and T. (Motion to
Compel Psychological Examination and Motion to Quash Deposition Subpoena for
Appearance and Production)

Defendant Compton Unified School District (Motion to Quash
or Modify Subpoena for Production of Business Records)

Notice: Ok

Tentative Rulings: (1) Defendant's Motion to
Compel Psychological Evaluation of Plaintiffs is GRANTED, subject to the terms
and conditions set forth herein.

(2) Los Angeles Unified School District's Motion to Quash
Plaintiff's Deposition Subpoena for Personal Appearance and Production of
Documents and Things is GRANTED.

(3) Plaintiff A's Motion to Quash or Modify Defendants'
Deposition Subpoenas for Production of Business Records is GRANTED IN PART.

I.

BACKGROUND

This is a complaint for personal injury and damage
arising from childhood sexual abuse.

Plaintiffs "A." and "T." (collectively the "Plaintiffs") allege that
each was the victim of unlawful childhood sexual assault and abuse from on or
about 2005 through 2008 by their basketball coach, Defendant Russel Otis

("Otis") while attending school at Defendant Compton Unified School District ("Compton Unified" or "CUSD"). Otis and Compton Unified are collectively referred to herein as the "Defendants"

On December 25, 2024, Plaintiffs filed suit against Defendants and DOES 1 through 200 alleging causes of action for: (1) Negligent Hiring, Supervision, & Retention of an Unfit Employee; (2) Breach of Mandatory Duty: Failure to Report Suspected Child Abuse; (3) Negligent Failure to Warn, Train, or Educate; (4) Negligent Supervision of a Minor; (5) Negligence; (6) Intentional Infliction of Emotional Distress; (7) Sexual Harassment Under Education Code §§ 200, et seq.; (8) Sexual Harassment Under Civil Code § 51.9; and (9) Sexual Assault & Battery (Cal. Civ. Code § 1708.5).

A.
Motion to Compel Psychological Examination of Plaintiffs
("D's MTC")

On June 11, 2026, CUSD filed the instant Motion to Compel Psychological Evaluation of Plaintiffs.

On July 6, 2026, Plaintiffs filed an Opposition.

On July 10, 2026, CUSD filed a Reply.

B.
Motion to Quash Plaintiffs' Deposition Subpoena for Personal Appearance and Production of Documents and Things ("LAUSD's MTQ")

On April 30, 2026, Los Angeles Unified School District ("LAUSD") filed the instant Motion to Quash Plaintiff's Deposition Subpoena for Production of Documents and Things.

On July 6, 2026, Plaintiffs filed an Opposition.

On July

10, 2026, LAUSD filed a Reply.

C.

Motion to Quash or Modify Defendant's Deposition Subpoena
for Production of Business Records ("A's MTQ")

On June 5,

2026, Plaintiff A. filed the instant Motion to Quash or Modify Defendant's
Deposition Subpoena for Production of Business Records.

On July 5, 2026 CUSD filed its Opposition.

On July 10, 2026, Plaintiff A. filed a Reply.

On June

26, 2026, the Court heard CUSD's Ex Parte Application for an Order Advancing
the Hearing Date on its Motion to Continue Trial or, in the Alternative, for an
Order Continuing Trial. On the same
date, the Court advanced the hearings on D's MTC, LAUSD's MTQ, and A's MTQ
(collectively the "Discovery Motions") and set all to be heard concurrently on
July 17, 2026.[1] (See Minute Order,
6/26/26.)

II.

ANALYSIS

A.

Legal
Standards

1.

Motion to Compel Psychological Examination

A defendant who seeks to conduct a
mental examination of a plaintiff must file a motion and "obtain leave of
court." (Code Civ. Proc. § 2032.310(a).) Such a motion must "specify the time,
place, manner, conditions, scope, and nature of the examination, as well as the
identity and the specialty, if any, of the person or persons who will perform
the examination." (Code Civ. Proc. § 2032.310(b).) The court may grant such a

motion “only for good cause shown.” (Code Civ. Proc. § 2032.320(a).) A showing of good cause generally requires that “the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.) A mental examination is generally appropriate only when a plaintiff alleges continuing emotional distress or mental injury and so places his or her mental or emotional condition “in controversy” in the action. (Id. at p. 840.)

“An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc. § 2032.320(d).) “[T]he court is to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed. The way to describe these diagnostic tests and procedures—fully and in detail—is to list them by name.” (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 260 (“Carpenter”).)

The party who seeks to compel a mental examination has the burden to specify the diagnostic tests and procedures to be conducted. (Carpenter, supra, 141 Cal.App.4th at p. 267.) “Insisting that section 2032.320 means what it says—that the diagnostic tests and procedures must be specified—will result in an orderly and efficient means of balancing the interests of the plaintiff and defendant. The defendant, aware that the court must name the diagnostic tests and procedures in the order granting a mental examination, will identify the potential tests and procedures in its moving papers. The plaintiff, assisted by counsel and a psychologist or other expert, may consider whether the proposed tests are inappropriate, irrelevant, or abusive, and submit evidence and argument to that effect if necessary.” (Ibid.)

2.

Motion to Quash Subpoena for Appearance and Production of Documents

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably

made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1(a).)

3.

Motion to Quash or Modify Subpoena for Production of Business Records

"Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum." (Code Civ. Proc. § 1985.3(g).) As referenced in Code Civ. Proc. § 1985.3, "personal records" "means the original, ... or electronically stored information pertaining to a consumer and which are maintained by any 'witness' which is a physician, ... hospital, [or] medical center...." (Code Civ. Proc. § 1985(a)(1).) Further, "consumer" "means any individual ... [who] has transacted business with, or has used the services of, the witness" (Code Civ. Proc. § 1985(a)(2).)

In turn, Code of Civil Procedure §1987.1(a) provides as follows:

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

(Code Civ. Proc. § 1987.1(a).)

The Discovery Act places "the burden upon the party seeking the discovery to provide evidence" that the discovery is appropriate and "requires a party seeking to compel such production to set forth specific facts showing good cause justifying the discovery sought." (*Calcor Space Facility v. Superior Court* (1997) 53 Cal.App.4th 216, 223-224.)

And "plaintiffs are 'not obligated to sacrifice all privacy to seek redress for a specific [physical,] mental or emotional injury'; while they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing [a] lawsuit, . . . they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past." (Britt v. Superior Court (1978) 20 Cal.3d 844, 864 (citation and footnote omitted).) However, ". . . privacy interests may have to give way to [an] opponent's right to a fair trial." Thus courts must balance the right of civil litigants to discover relevant facts against the privacy interests of persons subject to discovery." (Vinson v. Superior Court (1987) 43 Cal.3d 833, 842.)

B.

Motion to

Compel Psychological Examination

1.

Meet and

Confer Requirement

A motion to compel a mental examination must "be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc. § 2032.310(b).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc. § 2016.040.)

CUSD's counsel Brittney M. Cannon ("Cannon") attests that on May 19, 2026, after receiving Plaintiffs' objections to the previously served Demands for Psychological Examination, counsel met and conferred telephonically

regarding Plaintiffs' objections. (Cannon Decl., ¶¶ 4-7, Exhs. A-C.) After further communication, Plaintiffs' counsel agreed to the proposed list of psychological tests but proposed various limitations governing the examinations. (Id., ¶¶ 8-11, Exhs. D-G.) On June 9, 2026 counsel again met and conferred telephonically, this time regarding the proposed examination limitations. (Id., ¶ 12.) After further discussions, parties were unable to come to a resolution. (Id., ¶¶ 13-14, Exhs. H-I.)

The

Court finds that CUSD has met its statutory meet and confer obligation.

2.

The Dispute

Upon review of the moving papers, reply, and response, the Court understands that Plaintiffs do not dispute CUSD's right to conduct the proposed psychological examinations. (See Opp., p. 2:6-11("Plaintiffs are not opposed to a psychological examination in this matter but need to ensure that proper and safe parameters are in place. Plaintiffs have agreed to the full battery of standardized testing that Defendant proposed, have agreed that raw testing data and audio recording be transmitted directly to Plaintiffs' retained expert and have agreed to forego presence of a representative at the examination").)

Because there is no real dispute as to the time, place, manner, diagnostic tests and procedures and nature of the examination, the Court proceeds directly to the dispute at hand: whether CUSD's retained expert may: (1) inquire and examine regarding Plaintiff's consensual sexual history and conduct; and (2) ask questions "that [do] no more than re-elicite, in granular details the specific [sic] of the alleged abuse that Plaintiffs have already testified to at length during their depositions." (See Opp, p. 2:12-15.)

As to both areas of potential inquiry, CUSD contends: (1) that Plaintiffs' allegations and alleged injuries render both areas of potential inquiry relevant and discoverable; (2) any privacy concerns are outweighed by CUSD's need to properly prepare for trial given the nature of the allegations; and (3) Plaintiffs' objections were not timely and therefore waived. In opposition, Plaintiffs argue that CUSD: (1) has not followed the proper statutory procedure to obtain an order permitting inquiry into past consensual sexual conduct; and (2) has not established the required "extraordinary circumstances" sufficient to

satisfy the heightened standard of relevancy required to justify such an intrusion into Plaintiffs' privacy. As to questions regarding the specific abuse alleged here, Plaintiffs contend that CUSD's expert should not be allowed to "re-depose" them since they have already been thoroughly examined on the topic at deposition.

i.

Examination Regarding Consensual Sexual Conduct

"In any civil action alleging conduct that constitutes sexual harassment, sexual assault, or sexual battery, any party seeking discovery concerning the plaintiff's sexual conduct with individuals other than the alleged perpetrator shall establish specific facts showing that there is good cause for that discovery, and that the matter sought to be discovered is relevant to the subject matter of the action and reasonably calculated to lead to the discovery of admissible evidence. This showing shall be made by a noticed motion, accompanied by a meet and confer declaration under Section 2016.040, and shall not be made or considered by the court at an ex parte hearing." (Code Civ. Proc. § 2017.220(a).)

First, the Court does not find Plaintiffs' arguments regarding CUSD's alleged failure to follow Code of Civil Procedure § 2017.200 persuasive. After having met and conferred, the parties appear here on a noticed motion whereby CUSD seeks to obtain discovery regarding Plaintiffs' sexual conduct. CUSD has presented what it considers to be good cause to obtain such discovery and why it contends the discovery is relevant and Plaintiffs have contested both whether CUSD's arguments as to good cause and relevancy are sufficient and/or valid. Nothing more is required.

As to the determination of whether good cause exists and/or whether the information sought is relevant to the subject matter of this action and reasonably calculated to lead to the discovery of admissible evidence, the Court finds confusion. The confusion stems from the failure to define and explain what is meant by "consensual sexual conduct." Both parties refer in the abstract to that term without any specificity. CUSD argues that inquiry into Plaintiffs' "consensual sexual conduct" is relevant and good cause exists because Plaintiffs have alleged harm that such inquiry might shed light on. Plaintiffs argue that inquiry into Plaintiffs

“consensual sexual conduct” is irrelevant and an invasion of privacy. But neither party specifically defines what “consensual sexual conduct” means and neither party specifically explains or delineates what questions might be asked about “consensual sexual conduct” or what differentiates “consensual sexual conduct” from other, non-sexual, forms of intimate contact. It is in the lack of definition that the problem arises.

Although CUSD does not provide any deposition testimony from Plaintiff T. in support of its motion, CUSD does provide portions of a deposition transcript of Plaintiff A. in support of its motion, which only serves to further add to the confusion. A testifies that he struggles to maintain relationships and “struggle[s] to be physically touched” and that it makes him uncomfortable “when Kourtney tries to give me love sometimes, to give me hugs or comfort me.” (Cannon Decl., ¶ 16, Exh. J (Deposition Transcript of Plaintiff A.), pp. 172:19 – 173:10.) After a question about whether he has “ever been physically intimate with somebody besides Kourtney” and an instruction not to answer based upon a privacy objection, A. goes on to testify that “that’s not the problem. That’s not what I mean. What I mean is that when I feel comfort, when people try to express love towards me or to express closeness and intimacy, they’ll give me hugs when I feel down or upset or try to empathize with me or anything like that, it makes me uncomfortable. I mean, I have sexual desires. I don’t have a problem there. But in terms of like meaningful connection of things that actually mean something, that you can build upon, I have trouble stacking those days together, you know. I have trouble accepting the love that she’s trying to give to me.” (Id., pp. 174:6-17.) As can be seen from the deposition testimony, even A. in testifying is attempting to elucidate a distinction between sexual contact and other forms physical intimacy but the line is unclear.

What ultimately is clear is that the parties have differing definition of what constitutes inquiry into past “consensual sexual conduct.” CUSD appears to believe that it involves a line of questioning that does not necessarily include carnal sexual conduct. Plaintiffs appear to believe that an inquiry into “consensual sexual conduct” will necessarily involve questions of an explicit carnally sexual nature. Neither party has presented the Court with enough information for the Court to determine what any inquiry into past “consensual sexual conduct” would entail (likely because, in the context of a mental examination, any such inquiry would

be guided by whatever response is given to a particular preceding question and it is unknown what specific questions will be asked and what specific answers will be given).

To resolve this issue, the Court offers the following guidance: inquiry into Plaintiffs' specific past sexual conduct of a carnal nature (i.e. "who did you have intercourse with," or "what specifically did you do") is the kind of inquiry: (1) that falls outside the realm of relevance; and (2) for which no good cause has been shown. Inquiry of a follow up nature (i.e. "you said you've had problems with X, what does that mean") or inquiry as to past consensual conduct (i.e. the "hugs" deposition testimony set forth above) either already identified or identified during the course of the examination is authorized. Plaintiffs are free to decline to respond to any inquiry they feel is violative of their privacy with the understanding that privacy is not something that can be used to shield information that one later intends to introduce at trial. In turn, the Court will give serious consideration to any motion brought by CUSD to exclude evidence or testimony regarding areas where Plaintiffs refused to answer based on a privacy objection.

ii.

Examination Regarding the Alleged Abuse

Plaintiffs seek to limit the examiner's ability to inquire as to the alleged abuse at issue in this matter, arguing that CUSD should not be permitted to take a "second deposition" of Plaintiffs. The Court does not find this argument persuasive. A deposition is conducted by an attorney, not a licensed medical professional and most certainly not by a professional retained for certain areas of medical knowledge and expertise. To limit an expert's examination because a deposition has already occurred would be to hamstring the medical expert and, ultimately, to make the professional's expertise dependent upon the deposing lawyer's prowess. Plaintiffs may have already testified in granular detail about the alleged abuse, but that alleged abuse is the basis of this lawsuit. The Court will not limit inquiry as to the allegations that underly these proceedings. The mental examination is a separate and independent examination, and the examiner may inquire as to the alleged abuse as he or she sees fit.

C.

Motion

to Quash Subpoena for Appearance and Production of Documents

LAUSD seeks to quash the deposition

subpoena served on it seeking Defendant Otis' employment information, arguing that Plaintiffs failed to serve Otis with a notice as required by Code of Civil Procedure § 1985.6, the records sought violate Otis' constitutional right to privacy and the documents sought are available through less intrusive means.

Plaintiffs oppose, arguing that the

documents have already been produced in response to an earlier discovery request and thus LAUSD has waived any privacy objections and its motion is moot. Plaintiffs further argue that LAUSD's motion

is procedurally deficient and the documents sought do not require consumer notice.

1.

Request for Judicial Notice

In support of its motion and

pursuant to Evidence Code § 452(h), LAUSD requests the Court take judicial notice of an article from SoCalHoops High School News titled "High School Team Preview: Compton Dominguez High – (Oct. 15, 1998)" and dated October 15, 1998.

Evidence Code § 452(h) permits the

Court to take judicial notice of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid.

Code § 452(h).) The Court does not

consider this news article a source of reasonably indisputable accuracy. While the fact that the article appeared in SoCalHoops High School News on October 15, 1998 might be judicially noticeable, the "facts" set forth in the article (which are what LAUSD would like the Court to judicially notice) are the textbook definition of hearsay.

LAUSD's request for judicial notice
is DENIED.

2.

Code of Civil Procedure § 1985.6

The Court finds that Plaintiffs

failed to provide notice as required by Code of Civil Procedure § 1985.6. That Code section requires that “[p]rior to the date called for in the subpoena duces tecum of the production of employment records, the subpoenaing party shall serve or cause to be served on the employee whose records are being sought a copy of: the subpoena duces tecum; the affidavit supporting the issuance of the subpoena, if any; the notice described in subdivision (e); and proof of service as provided in paragraph (1) of subdivision (c).” (Code Civ. Proc. § 1985.6(b).) LAUSD’s counsel declares that “the [subpoena] did not include a copy of a Notice to Employee pursuant to Code of Civil Procedure § 1985.6.” (Uyeshima Decl., ¶ 2, Exh. 1.) Plaintiffs do not attest that they provided notice to Otis, but rather argue that the absence of the notice “does not justify an order to quash” because “Defendant Otis already received statutory notice of a substantially identical records request in December 2025 and did not object, and he separately has actual notice of this very motion as a named party defendant.” (Opp., p. 3:6-9.)

Plaintiffs’ arguments are not

persuasive. That Otis was given notice

of a prior “substantially identical” record request does not obviate the need to

follow the statutory procedure, especially where the statutory procedure is

designed to protect constitutionally granted privacy protections. And that Otis has notice of the subpoena via

the instant motion has no bearing upon Plaintiffs’ obligation to provide notice

pursuant to Code of Civil Procedure § 1985.6.

Had the legislature intended the notice provided by a subpoenaed party’s

motion to quash to be sufficient notice there would be no need for the advance

notice provisions Code of Civil Procedure § 1985.6.

Further, the Court fails to understand,

if the subpoenaed documents have already been produced pursuant to an earlier discovery

request thus “rendering [LAUSD’s] current request to quash the document demand

for that portion of the subject Subpoena moot” (Opp., p. 2:10-12), why a second

subpoena seeking already produced documents was served; and why this dispute regarding

documents is before the Court.

Because Plaintiffs have not complied

with Code of Civil Procedure § 1985.6, LAUSD’s Motion is GRANTED. Plaintiffs may re-serve their subpoena in accordance

with the Code of Civil Procedure.

D.

Motion to

Quash or Modify Subpoena for Production of Business Records

Plaintiff A seeks to quash or modify

CUSD's subpoena for medical records, arguing that the subpoena is overbroad and seeks all mental health records without limitation. CUSD opposes, arguing that Plaintiff A's mental and emotional health are directly at issue and any concern regarding the breadth of the request is better resolved via modification of the subpoena rather than quashing it.

The Court notes that there does not

appear to be any dispute regarding the relevancy or discoverability of Plaintiff's mental health records in some respect.

The dispute is as to whether the subpoena is overinclusive. Plaintiff A.'s counsel has offered a "first look" resolution, whereby Plaintiff would receive the subpoenaed records and remove any objectionable documents and provide a privilege log. CUSD's counsel does not find that arrangement palatable because it alleges that Plaintiff failed to even identify Kaiser as a medical provider in discovery responses, leading to concerns regarding Plaintiff being the arbiter of what is ultimately produced.

Rather than limit the subpoena, the

Court offers the following solution and will discuss with counsel at the

hearing any concerns: modify the subpoena to have the documents delivered to Department

E. Once the documents are received, counsel

will review the documents in Department E and compile a list of documents as to

which there is an objection. The Court

will then hear from both counsel as to any objection. This should address and alleviate any privacy concerns and any concerns regarding what document are not produced.

II.

CONCLUSION

CUSD's Motion to Compel Psychological Evaluation of

Plaintiffs is GRANTED, subject to the terms and conditions set forth above.

Los Angeles Unified School District's

Motion to Quash Plaintiff's Deposition Subpoena for Personal Appearance and Production of Documents and Things is GRANTED.

Plaintiff A's Motion to Quash or

Modify Defendants' Deposition Subpoenas for Production of Business Records is GRANTED
IN PART. The subpoena will be modified
as is set forth above.

[1]

Also on June 26, 2026, the Court set a hearing for a "Motion for Additional
Discovery." (See Minute Order, 6/26/26, p. 2.)

No documents have been filed regarding the "Motion for Additional
Discovery" and accordingly the Court does not address it but rather takes it
off calendar.